

24NWCV03545 24NWCV03545

County: los-angeles

Division: Civil Law and Motion

Department: L

Hearing date: 2026-07-14

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SE%20%2CL%2C07%2F14%2F2026

Source SHA-256: 82cedecba61663ea22c88d03b7b5b01afc7f8a42bd3c53088bd9cb5e15b91343

Case Number: 24NWCV03545 Hearing Date: July 14, 2026 Dept: L

Defendant Bellflower Unified

School District's Demurrer to the First Amended Complaint is OVERRULED.

Defendant's Motion to Strike

is GRANTED.

Defendant is ordered to file

an answer within 10 days of this order.

Defendant to give notice.

Background

This is an action for sexual

assault of a minor. On October 9, 2024, Plaintiff Jane Doe, a minor, by and through her Guardian ad Litem, P.C., ("Plaintiff") filed this action against Defendant Bellflower Unified School District ("BUSD") and Does 1 to 40.

On November 5, 2025, the Court

sustained BUSD's Demurrer to the Complaint with 30 days leave to amend. (11/5/25 Order.)

On December 5, 2025, Plaintiff

filed the First Amended Complaint (FAC). The FAC alleges that Plaintiff was a student at Thomas Jefferson Elementary School in 2023. Plaintiff and two other female students entered a girls' bathroom and were "confronted by a person who is believed to be an adult male, who, with his pants down, assaulted, harassed, annoyed, and intimidated [Plaintiff] and the other students." (FAC, ¶ 11.)

Plaintiff immediately reported the incident to school staff, and a staff member escorted the perpetrator, Defendant Doe 1, off campus.

The FAC alleges the following causes of action:

1. Negligence

(against BUSD and Does 2 to 40);

2.

Sexual Battery (against Doe 1);

3.

Battery (against Doe 1);

4.

Assault (against Doe 1);

5.

False Imprisonment (against Doe 1); and

6.

Intentional Infliction of Emotional Distress
(against Doe 1).

BUSD now demurs to the entire FAC or as to each cause of action individually. BUSD also moves to strike portions of the FAC.

Legal Standard

“[A] demurrer tests the legal sufficiency of the allegations in a complaint.” (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (See Donabedian v. Mercury Ins. Co. (“Donabedian”) (2004) 116 Cal.App.4th 968, 994 [in ruling on a demurrer, a court may not consider declarations, matters not subject to judicial notice, or documents not accepted for the truth of their contents].) For purposes of ruling on a demurrer, all facts pleaded in a complaint are assumed to be true, but the reviewing court does not assume the truth of conclusions of law. (Aubry v.

Tri-City Hosp. Dist. (1992) 2 Cal.4th 962, 967.)

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Id.; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) However, “[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend.” (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245.)

Meet and Confer

Code of Civil Procedure section 430.41, subdivision (a) and section 435.5 require that the parties meet and confer “in person, by telephone, or by video conference.”

On December 30, 2025, Defense counsel emailed Plaintiff’s counsel to schedule a meet and confer telephone call, but Plaintiff’s counsel failed to respond. (Roche Decl., ¶¶ 2-3, Exh. A.) On January 2, 2026, Defense counsel filed a Declaration of Automatic Extension stating that the parties were unable to meet and confer at least 5 days prior to the demurrer deadline of January 8, 2026. (Roche Decl., ¶ 3, Exh. A.) The Demurrer was filed on February 9, 2026.

Despite the parties’ failure to meet and confer, the Court will address the merits of the Demurrer in the interests of judicial efficiency.

Discussion

BUSD demurs to all causes of action on grounds of uncertainty. BUSD also demurs on grounds that the first cause of action fails to state a claim against it. The Court will address each issue in turn.

i.

Uncertainty as to All Causes of Action

Firstly, BUSD argues that the FAC

is uncertain as to whether all causes of action are alleged against it.

Specifically, the FAC alleges the following: “Wherever reference is made in this complaint to any act by a DEFENDANT or DEFENDANTS, such allegation and reference shall also be deemed to mean the acts and failures to act of each DEFENDANT, including DOES, acting individually, jointly, and severally.” (FAC, ¶ 8.) Paragraph 8 to the SAC is incorporated by reference in each cause of action.

In the second through sixth causes of action the FAC alleges the following:

“As

a direct and proximate result of the acts and omissions of DEFENDANT, as alleged herein, PLAINTIFF suffered injuries and damages including, but not limited to, physical and/or mental pain and suffering, emotional distress, past and future costs of medical and/or psychological care and treatment, and other economic and non-economic damages, in an amount not yet ascertained but which exceed the minimum jurisdictional limits of this Court.”

(FAC, ¶¶ 32, 35, 38, 42, 46.)

Reading the allegations together, the FAC alleges that “BUSD proximately caused the intentional harm for which Plaintiff seeks compensation against DOE 1 under her Second through Sixth COAs [...]” (Dem., 7:17-18.) In other words, even though only the first cause of action is alleged against BUSD, it is unclear whether the other causes of action are also alleged against BUSD.

Second, BUSD argues that the FAC is uncertain because it contradicts itself regarding Doe 1’s status. Paragraph 4 of the FAC alleges that Doe 1’s identity is unknown. However, paragraph 7 of the FAC alleges that Doe 1 was at all times an agent and employee of Defendants, including BUSD. (See FAC, ¶ 7 [“[E]ach of the DEFENDANTS sued herein as DOES 1 through 40, inclusive, was the agent and employee of each of the remaining DEFENDANTS [...]”].))

Further, the first cause of action is only alleged against BUSD and Does 2 to 40. (See FAC, ¶ 18.) But the first cause of action alleges that “DEFENDANTS, and each of them, failed to uphold duties imposed on them by law, through applicable standards of care, and

through written policies and procedures applicable to DEFENDANTS [...].” (FAC, ¶ 19.) When read together with paragraph 8, the term “Defendants” includes Doe 1. Thus, it is unclear whether Doe 1 is included in the first cause of action. To the extent that the FAC alleges that BUSD is vicariously liable for the intentional torts committed by Doe 1, such claims are barred because sexual misconduct is not within the scope of school district employment.

Overall, it is uncertain whether the FAC alleges that BUSD is vicariously liable for the intentional acts of Doe 1, as alleged in the second through sixth causes of action.

In opposition, Plaintiff argues that the FAC is not so uncertain that BUSD cannot determine what is being alleged against it. Plaintiff clarifies that the first cause of action is alleged against BUSD and Does 2 to 40 only. The second through sixth causes of action are alleged against Doe 1 only. The FAC’s headings are clear as to which causes of action are alleged against which Defendants.

Further, the FAC is not unclear as to Doe 1’s status. The FAC alleges that Doe 1’s identity is unknown. Plaintiff is unaware at this time if Doe 1 is the agent/employee of BUSD. However, the first cause of action is clear that it is only alleged against BUSD and Does 2 to 40. In other words, the first cause of action is not based on any vicarious liability for Doe 1’s actions as an employee or agent.

In reply, BUSD argues that the text of the FAC explicitly defines the global term “DEFENDANT” to include BUSD in paragraphs 8 and 9. Such paragraphs are incorporated by reference into all causes of action. Thus, when considering the incorporated allegations, the FAC is uncertain because the second through sixth causes of action are also alleged against BUSD. Thus, BUSD cannot determine which causes of action are alleged against it. Such uncertainty prevents BUSD from accurately evaluating its affirmative defenses.

“A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.” (Khoury v. Maly's of California, Inc. (“Khoury”) (1993) 14 Cal.App.4th 612, 616.) A demurrer for uncertainty should be overruled when the facts as to which the complaint is uncertain are presumptively within the defendant's knowledge.

(Chen v. Berenjian (2019) 33 Cal.App.5th 811, 822.)

The Court finds that the FAC is not so uncertain that BUSD is not on notice of what is being alleged against it. The causes of action are clearly labeled as to which cause of action is being alleged against which defendant. The Court finds that “Defendants” as used in the first cause of action, refers to BUSD and Does 2 to 40 only. The Court finds that “Defendant” as used in the second to sixth causes of action refers to Doe 1.

Further, the Court finds that any ambiguity as to the identity and employee status of Doe 1 can be determined through discovery procedures. (See Khoury, supra, 14 Cal.App.4th at p. 616.) Regardless, the employee status of Doe 1 is not relevant for this Demurrer. The first cause of action is not based on the theory that BUSD is vicariously liable for conduct of Doe 1 as an agent or employee. (See FAC, ¶ 18 [“DEFENDANT BUSD, through its employees, staff, and agents including those identified in this Complaint as DOES 2 through 20 and Principal Angelica Montelongo, owed a duty of care to PLAINTIFF by way of the special relationship that exists between a school district and its students.”].)

ii.

Failure to State a Claim as to First Cause of Action

BUSD argues that, because the first cause of action is uncertain, the first cause of action fails to meet the pleading standards required for claims against public entities.

In opposition, Plaintiff argues that all elements of negligence are adequately alleged against BUSD.

For the reasons stated previously, the Court finds that the first cause of action is not uncertain. The FAC adequately states a claim against BUSD. Further, on BUSD’s prior Demurrer to the Complaint, the Court found that the Complaint sufficiently alleged “all elements of negligence” against BUSD. (See 11/5/25 Order.)

Accordingly, the Demurrer to the FAC is OVERRULED.

Motion to Strike

Code of Civil Procedure, section 436 permits trial courts to strike out any irrelevant, false, or improper matter inserted in a pleading:

"The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper:

(a) Strike out any irrelevant, false, or improper matter inserted in any pleading.

(b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court."

(Code Civ. Proc., § 436.)

BUSD moves to strike the following portion of the FAC, under the section entitled "Facts Applicable to All Causes of Action":

".
However, Plaintiff is informed and believes, and thereon alleges, that no staff member associated with the elementary school or Defendant BUSD including, but not limited to, Angelica Montelongo, immediately contacted law enforcement or any reporting agency. Instead, Plaintiff is informed and believes, and thereon alleges, that a staff member of the elementary school merely escorted the perpetrator, Defendant DOE 1, off campus. Plaintiff is informed and believes, and thereon alleges, that it was not until the media received knowledge of the incident and contacted the school staff, that a staff member reported the incident to law enforcement. Thus, by the time the school day was over and despite PLAINTIFF and other girls reporting the assault, Plaintiff is informed and believes that neither law enforcement, nor PLAINTIFF's guardian, had been contacted by BUSD of the incident."

(FAC, ¶ 12.)

BUSD argues that such allegations are irrelevant to the first cause of action for negligence, the sole cause of

action alleged against it. Specifically, the negligence claim is based on BUSD's duty to use reasonable care to supervise and protect students, to properly train teachers, to supervise staff, to protect students, etc. (FAC, ¶ 19.) Any allegations that BUSD and its agents failed to make a report to law enforcement on the date of incident are irrelevant to proving any such negligence. Such allegations are an improper attempt to allege a violation of the Child Abuse and Neglect Reporting Act (CANRA), which provides no private right of action against a public entity or its employees for failure to report.

In opposition, Plaintiff argues that such allegations are relevant to the negligence cause of action. Specifically, such allegations support Plaintiff's claims that "BUSD's employees failed to act promptly to protect students, failed to implement and enforce appropriate safety procedures, failed to adequately train and supervise its employees, and failed to act reasonably after learning of the assault." (Opp., 5:18-21.)

In reply, BUSD argues that the FAC fails to allege with particularity that BUSD failed to train its employees on CANRA reporting policies, or that BUSD mandated reporters have a pattern or practice of violating CANRA. Further, the FAC fails to allege how any failure to report caused the alleged October 26, 2023 incident.

The Court finds that such allegations are irrelevant to support Plaintiff's negligence claim. The negligence claim essentially alleges that, as a result of BUSD's and/or its agents' breach of their duty to properly supervise students and to train its employees, Plaintiff was injured by Doe 1's assault. (FAC, ¶¶ 17-27.) Allegations that BUSD failed to report such assault to law enforcement or Plaintiff's guardian do not support Plaintiff's damages alleged in the negligence cause of action. As explained in the Court's ruling on BUSD's prior Demurrer to the Complaint, the FAC similarly does not allege how BUSD's alleged failure to timely report the incident proximately caused injuries to Plaintiff separate from those associated with the assault itself. (See 11/5/25 Order.) The Court thus finds that the allegations regarding BUSD's employees' failure to report are improper.

Accordingly, the Motion to Strike is GRANTED.